

26VECV01149 26VECV01149

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-06-30

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Case Number: 26VECV01149 Hearing Date: June 30, 2026 Dept: T

26VECV01149 DAVIDI V GREENSLADE

The court sets an MSC on 10/8/2026 at 10 a.m. with Judge Michael Amerian in Dept. O, Van Nuys West. Please prepare to be available all day.

[TENTATIVE] ORDER: Defendants Anthony W. Willoughby II, Anna Randall, and Brianne Cassidy's Demurrer to the Complaint is CONTINUED to _____, 2026.

Defendants Anthony W. Willoughby II, Anna Randall, and Brianne Cassidy are ORDERED to file/serve a Demurrer to the FAC that only updates the paragraph citations to correlate with the paragraphs in the First Amended Complaint. Defendants Anthony W. Willoughby II, Anna Randall, and Brianne Cassidy are not to add or delete arguments presented in the Demurrer to the Complaint. No other briefs attacking the pleading are permitted.

Opposition and Reply briefs are to be served and filed commensurate with the new hearing date.

Introduction

Defendants Anthony W. Willoughby II, Anna Randall, and Brianne Cassidy (collectively, Defendants) demurred to Plaintiffs David Davidi and Law Offices of David Davidi, APLC's (collectively, Plaintiffs) Complaint. The demurrer placed into issue the entirety of the Complaint and specifically, the first cause of action (COA) for breach of contract, the second COA for breach of fiduciary duty, the third COA for conversion, the fourth COA for accounting, the fifth COA for unjust enrichment/quantum meruit, and the sixth COA for unfair business practices (UCL).

Procedure

Defendants' demurrer was filed on June 5, 2026, and scheduled to be heard on June 30, 2026. On May 22, 2026, the Court overruled Co-Defendant Hazel Kim's (Kim) demurrer to the Complaint and granted leave to amend as to the motion to strike the request for punitive damages. As a result and while Defendants' demurrer was pending, Plaintiffs filed a First Amended Complaint (FAC) on June 11, 2026, adding allegations related to the request for punitive damages. Plaintiffs did not file an Opposition to Defendants June 5, 2026, Demurrer to the Complaint. After Defendants filed a notice of non-opposition, which acknowledged the existence of the FAC, Plaintiffs submitted briefing to dispute any requirement to oppose the Demurrer to the Complaint based upon the filing of the FAC. Plaintiffs did not address the substance of the Demurrer to the Complaint.

Because the FAC only amended allegations as to the request for punitive damages, the presumption is that substantive changes to the allegations supporting each COA were not made. Defendants assert that the same defects identified in the demurrer to the original Complaint are still applicable to the FAC and Plaintiffs do not dispute Defendants' contention.

Plaintiffs appear to be amenable to the Court applying Defendants' demurrer to the original Complaint to the FAC. However, the Court notes that the Demurrer to the Complaint included specific paragraph citations relative to the Complaint. It is presumed that with the added allegations in the FAC relative to punitive damages, the paragraph citations in the Demurrer relative to the Complaint would not coincide with the paragraphs in the FAC. Because the Demurrer to the original Complaint needs to be updated so that the citations to the pleading can correlate to the FAC, the Court CONTINUES this hearing and ORDERS Defendants to file a Demurrer to the FAC.

The Demurrer to the Complaint is CONTINUED. Defendants are ORDERED to file a Demurrer to the FAC that only updates the paragraph citations to correlate with the paragraphs in the FAC. Defendants are not to add or delete arguments presented in the Demurrer to the Complaint. No other briefs attacking the pleading is permitted.

Opposition and Reply briefs are required to be filed/served commensurate with the new hearing date.